



U.S. Department
of Transportation

Research and
Special Programs
Administration

400 Seventh Street, S.W.
Washington, D.C. 20590

DOT-E 10396 (EXTENSION)
ORIGINAL November 16, 1990

In accordance with 49 CFR 107.105 of the Department of Transportation (DOT) Hazardous Materials Regulations DOT-E 10396 is hereby extended for the party(ies) listed below by changing the expiration date in paragraph 10 to June 30, 1998. This change is effective from the issue date of this extension. All other terms of the exemption remain unchanged.

This extension applies only to party(ies) listed below based on the application(s) received in accordance with 49 CFR 107.105. This extension constitutes a necessary part of this exemption and must be attached to it.

for Marilyn E. Morris
Alan I. Roberts
Associate Administrator
for Hazardous Materials Safety

July 2, 1996
(DATE)

Dist: FHWA

EXEMPTION HOLDER

APPLICATION DATE

Chevron Pipe Line Company
Salt Lake City, UT

June 21, 1996



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NOV 16 1990

DOT-E 10396

1. Chevron Pipe Line Company, Salt Lake City Utah, is hereby granted an exemption from certain provisions of this Department's Hazardous Materials Regulations to offer packages prescribed herein of a flammable liquid for transportation in commerce subject to the limitations and special requirements specified herein. This exemption authorizes the use of a non-DOT specification container described as a mechanical displacement meter prover for the shipment of a flammable liquid, and provides no relief from any regulation other than as specifically stated.

2. BASIS. This exemption is based on the Chevron Pipe Line Company's application dated April 27, 1990, submitted in accordance with 49 CFR 107.103 and the public proceeding thereon.

3. HAZARDOUS MATERIALS (Descriptor and class). Gasoline, classed as a flammable liquid.

4. PROPER SHIPPING NAME (49 CFR 172.101). Gasoline.

5. REGULATION AFFECTED. 49 CFR 173.119.

6. MODE OF TRANSPORTATION AUTHORIZED. Motor vehicle.

7. SAFETY CONTROL MEASURES. Packaging prescribed is a non-DOT specification container described as mechanical displacement meter prover mounted on a trailer. The meter prover is of a design: previously exempted by DOT-E 9048; which is constructed in accordance with ANSI B31.4 standards; and which complies with Brooks Instrument Division's drawing CP-121-M dated September 23, 1983 on file with the Office of Hazardous Materials Exemptions and Approvals (OHMEA). The pressure vessel: consist of 6 through 12 inch nominal pipe size (NBS), schedule 80 or XXH pipes with welded and bolted 600 lb. flange construction; has a service pressure of 1480 psig at ambient temperature; has an internal volume of 15 gallons; is operated at a maximum pressure of 200 psig; and is drained prior to transit. Pressure relief devices are not required. In addition:

a. The pressure rating as determined from the pipe component with the lowest pressure rating must be marked on each prover unit.

b. During transportation the pressure in the prover may not exceed 25 percent of pipe pressure rating at ambient temperature.

c. The bumper for the trailer must meet the requirements of 49 CFR 178.340-8(b) and 393.86.

8. SPECIAL PROVISIONS.

a. Persons who receive packages covered by this exemption may reoffer them for transportation provided no modifications or changes are made to the packages, all terms of this exemption are complied with and a current copy of this exemption is maintained at each facility from which such reoffering occurs.

b. A copy of this exemption must be carried aboard each motor vehicle used to transport packages covered by this exemption.

c. Drivers must have been instructed as to necessary safeguards and proper procedure in the event of unusual delay, fire, or accident.

d. Each prover must be visually reinspected once a year and retested once every 5 years at not less than 75 percent of the prover's design pressure.

e. Meter provers marked "DOT-E 9048" prior to the issuance of this exemption may be operated under the terms of this exemption.

9. REPORTING REQUIREMENTS. Any incident involving loss of packaging contents or packaging failure must be reported to the Associate Administrator for Hazardous Materials Safety as soon as practicable.

10. EXPIRATION DATE. October 31, 1992.

Issued at Washington, D.C.:


Alan I. Roberts
Associate Administrator
for Hazardous Materials Safety

NOV 16 1990

(DATE)

Address all inquiries to: Associate Administrator for Hazardous Materials Safety, Research and Special Programs Administration, U.S. Department of Transportation, Washington, D.C. 20590.
Attention: Exemptions Branch.

Dist: FHWA